

seventy-one million four hundred and fifty-one thousand four hundred and twenty-seven pounds.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March, one thousand nine hundred and twenty-six, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those Bills. 40 & 41 Vict. c. 2.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding five pounds per centum per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

4. This Act may be cited as the Consolidated Fund Act, 1925. Short title.

## CHAPTER 9.

An Act to approve a Treaty between His Majesty and the King of Italy. [27th March 1925.]

**W**HEREAS His Majesty the King and His Majesty the King of Italy have concluded the Treaty set out in the Schedule to this Act:

And whereas the said Treaty has not yet been ratified:

And whereas it is expedient that the approval of Parliament should be given to the said Treaty:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The approval of Parliament is hereby given to the said Treaty, and it shall be lawful for His Majesty to make such Orders in Council and to do all such things Assent to Treaty.

as appear to him to be necessary or proper for carrying the said Treaty into effect.

Short title.

2. This Act may be cited as the Anglo-Italian Treaty (East African Territories) Act, 1925.

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## S C H E D U L E.

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### TREATY BETWEEN THE UNITED KINGDOM AND ITALY REGULATING CERTAIN QUESTIONS CONCERNING THE BOUNDARIES OF THEIR RESPECTIVE TERRITORIES IN EAST AFRICA.

*Signed at London, July 15, 1924.*

His Majesty the King of the United Kingdom of Great Britain and Ireland and of the British Dominions beyond the Seas, Emperor of India, and His Majesty the King of Italy, desiring to regulate, in a spirit of goodwill, certain questions concerning the boundaries of their respective territories in East Africa, have named as their plenipotentiaries :

HIS MAJESTY THE KING OF THE UNITED KINGDOM OF GREAT BRITAIN AND IRELAND AND OF THE BRITISH DOMINIONS BEYOND THE SEAS, EMPEROR OF INDIA :

The Right Honourable James Ramsay MacDonald,  
 M.P., His Prime Minister and Principal Secretary of  
 State for Foreign Affairs :

AND HIS MAJESTY THE KING OF ITALY :

His Excellency Il Marchese della Torretta dei Principi  
 di Lampedusa, His Ambassador Extraordinary and  
 Plenipotentiary at the Court of St. James :

Who, having exhibited their respective full powers found in good and due form, have agreed as follows :—

### ARTICLE 1.

His Britannic Majesty, in his own name and on his own behalf and by virtue of his protectorate over Zanzibar in the name and on behalf of His Highness the Sultan of Zanzibar, so far as the latter may be concerned, transfers to His Majesty the King of Italy all sovereign rights and title over that portion of African territory lying between the present Italian colony of

Southern Somaliland and a new boundary line to be determined as follows :—

From the confluence of the rivers Ganale and Daa'u, along the course of the Daa'u up-stream to the southern point of the small southerly bend of the latter river in the vicinity of Malka Ré; thence in a south-westerly direction in a straight line to the centre of the pool of Dumasa; thence in a south-westerly direction in a straight line towards Eilla Kalla (which remains in British territory) to such meridian east of Greenwich as shall leave in Italian territory the well of El Beru; thence along the same meridian southwards until it reaches the boundary between the provinces of Jubaland and Tanaland; thence along that provincial boundary to a point due north of the point on the coast due west of the southernmost of the four islets in the immediate vicinity of Ras Kiambone (Dick's Head); thence due southwards to such point on the coast. Ras Kiambone (Dick's Head) and the four islets above mentioned shall fall within the territory to be transferred to Italy.

In the event, however, of it being found by the Commission referred to in Article 12 that the well of El Beru does not contain water either sufficient or suitable for the maintenance at that point of an Italian frontier post, then the line, as between El Beru and Eilla Kalla, shall be so drawn by the Commission as to include in Italian territory the neighbouring well of El Shama.

#### ARTICLE 2.

The above boundary is shown on the attached map, and all references in the above description of the boundary are to this map.

In the event of differences between the text and the map, the text will prevail.

#### ARTICLE 3.

The Italian Government agree to the cancellation of the Treaty of Commerce between Italy and Zanzibar of the 23rd May 1885.

In accordance with the provisions of the Convention of Saint-Germain-en-Laye of the 10th September 1919, Italian subjects in the protectorate of Zanzibar shall enjoy the same rights and privileges and receive the same treatment as British subjects.

#### ARTICLE 4.

The Italian Government shall indemnify the Government of His Highness the Sultan of Zanzibar for any loss of net revenue arising out of the present transfer of territory, and shall pay to the latter, as an indemnity which shall in no wise represent a tribute implying any survival of sovereignty, the annual sum of £1,000, representing the proportionate share of the annuity

which has hitherto been paid by the British Government to the Government of Zanzibar.

The Italian Government shall be entitled at any time to effect the discharge of any obligation undertaken under the preceding paragraph by means of the payment of a lump sum of £25,000 to the Government of His Highness the Sultan of Zanzibar.

#### ARTICLE 5.

The Italian Government undertakes that, if it shall at any time desire to abandon all or any part of the territory transferred to it as above, it shall offer the same to the British Government upon such terms as may be just.

In the event of any differences between the two Governments as to the terms of transfer, the question shall be referred to arbitration in accordance with such procedure as the Council of the League of Nations may prescribe.

#### ARTICLE 6.

British subjects, other than those persons who have become British subjects by the annexation of the colony of Kenya, ordinarily resident at the date of the coming into force of the present convention in the territory transferred under Article 1, shall, unless within six months of the coming into force of the present convention they opt for Italian nationality, retain their British nationality without being called upon to withdraw from the said territory or to part with their property. In the event of their not opting for Italian nationality and of their desiring to withdraw from the transferred territory, they shall be at liberty to do so within twelve months from the coming into force of the present convention.

British-protected persons and British subjects who have become such by the annexation of the Colony of Kenya, ordinarily resident in the transferred territory, will acquire Italian nationality and cease to be British-protected persons and British subjects respectively. Provided, however, that such persons, not being Somalis, or belonging to the native races of the area transferred, shall have the right to retain their existing nationality on condition that they withdraw from the transferred territory within twelve months from the coming into force of the present convention.

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The same right is conferred on such a number of Somalis who are separated from their families by the new frontier as the wells and pasturage in the territory defined in the Annex to this Article can support, having regard to the present and reasonable future requirements of the tribes or sections of tribes already there, provided that such persons must be individually registered before they are allowed to cross into British territory. The commission

referred to in Article 12 shall decide as to the capacity in this respect of the said wells and pasturages and as to the number of the persons who may avail themselves of this right.

Persons who withdraw from the transferred territory under this Article shall be entitled to carry with them their movable property of every description without payment of export duties of any kind. They shall not in respect of such property be subject to import duties of any kind in the Colony of Kenya. They shall be entitled to retain their immovable property in the transferred territory.

*Annex.*

The territory lying within a straight line from the Lorian Swamp to Saddi: a straight line from Saddi to El Beru: the line defined in Article 1 from El Beru to its junction with the Tanaland-Jubaland frontier: and a straight line from the said junction to the Lorian Swamp.

ARTICLE 7.

All concessions or rights to properties in the above territories which have been recognised as valid by the former Government, and are held by private persons or corporations at the date of the transfer of those territories, shall be recognised as valid by the Italian Government, to whom shall be transferred all rights and obligations of the former Government under the said concessions.

It is agreed that the concessions and property rights shall be exercised in accordance with the general laws and regulations in force in the Italian colony of Italian Somaliland, and that the Italian Government may impose on the concessionnaires and proprietors all limitations necessary for the execution of works of general utility, upon granting to such persons the same compensation or indemnity as that to which Italian subjects would be entitled in similar cases.

ARTICLE 8.

All treaties, conventions and agreements between the Government of His Britannic Majesty and the Government of His Majesty the King of Italy, applicable to the Italian colony of Italian Somaliland, and at present in force, shall be extended to the territory now transferred in accordance with the present agreement.

ARTICLE 9.

The two Governments undertake that they will respectively endeavour to prevent any migration of Somalis or other natives across the frontier defined in Article 1.

If, however, the inquiries of the Commission referred to in Article 12 show that in the neighbourhood of the sector of the

new frontier running from El Beru to the Jubaland—Tanaland boundary there exists a shortage of pasture for the tribes situated on the Italian side of the frontier, and if these inquiries also show that during the rainy season there is on the British side of that sector and in the region bounded on the east by the new frontier and on the west by the line Goochi-Ribba-El-Tulli-Lakola-Toor Guda-Ramaguda more pasturage available than is required for the tribes in British territory, then the Commission will have power to decide that for a certain period, not less than five years, Somalis or other natives of the transferred territory may during the rainy season cross the boundary to such a distance and in such numbers as the Commission may prescribe, it being understood that in no case shall such Somalis or natives be allowed to pass to the west of the line Goochi-Ribba-El-Tulli-Lakola-Toor Guda-Ramaguda. The decisions of the Commission shall be carried into effect by the authorities concerned, and at the end of the period so prescribed the position will be reconsidered in a friendly spirit in the light of the experience gained and of the requirements at that time of the tribes in British territory.

#### ARTICLE 10.

The two Governments shall come to the necessary agreements with regard to the special conditions of time and place for evacuation by the British troops of the territory to be transferred and the entry of Italian troops; they shall settle in consultation with the local authorities the conditions of transfer to the Italian Government of the Government buildings existing within the territory which the latter may wish to acquire from the British Government and of the wireless telegraph installation at Kismayu.

The Italian Government agrees to respect the rights of Sudanese pensioners remaining at Yonte, in accordance with the general laws and regulations of the Italian colony of Southern Somaliland, and to make provision for the up-keep of the cemetery at Kismayu and the Jenner memorial.

#### ARTICLE 11.

The two Governments agree to consult together with a view to framing and putting into force reciprocal measures for the control of the illicit ivory traffic across the frontier defined in Article 1 of the present convention.

#### ARTICLE 12.

The manner in which the present agreement shall be carried out shall be settled on the spot by a commission composed of British and Italian officials appointed for the purpose by the two Governments. Until the whole boundary shall have been

demarcated by an accurate survey, the officials thus appointed shall be empowered to decide, provided an agreement can be reached, under which Government water holes of local importance situated near the boundary shall come.

In the event of an agreement not being found possible, the points in dispute shall be settled by an accurate survey in accordance with the line described in Article 1.

The present convention shall be ratified, and the ratifications exchanged in London as soon as possible.

In witness whereof the undersigned have signed the present convention, and have affixed thereto their seals.

Done in duplicate at London, the 15th day of July 1924.

(L.S.) J. RAMSAY MACDONALD.

(L.S.) TORRETTA.

## CHAPTER 10.

An Act to continue in force for one year the Agricultural Rates Act, 1923, to continue for so long as the said Act remains in force the charge on the Consolidated Fund of the additional annual grants payable thereunder, and to amend the said Act in its application to the Isles of Scilly. [27th March 1925.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The provisions of the Agricultural Rates Act, 1923, other than section fifteen thereof, shall, unless Parliament otherwise determines, continue in force until the thirty-first day of March, nineteen hundred and twenty-six. Continuance  
of 13 & 14  
Geo. 5. c. 39.

(2) The said section fifteen (which charges on the Consolidated Fund of the United Kingdom or the growing produce thereof the additional annual grants payable under the said Act), shall continue in force for so long